

**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

Case No:

In the matter between:

Afrocentric Investment Corporation Limited
(Reg: 1988/000570/06)

Applicant

and

Wilbur William Matthee

Respondent

FOUNDING AFFIDAVIT

I, the undersigned,

GERALD NEVILLE VAN WYK

do hereby make oath and state that:

- 1 I am an adult male and employed by Afrocentric Investment Corporation Limited as Group Chief Executive Officer. I confirm that I am duly authorised by the applicant to depose hereto on its behalf.
- 2 Save where the context indicates to the contrary, the facts contained herein fall within my own personal knowledge and belief and are true and correct. Given the urgency of the proceedings, certain facts set out herein may constitute hearsay evidence. I do, however, seek the leave of this Honourable Court to have such evidence admitted subject to same being appropriately supported by further affidavits, if necessary, on the return date of the *rule nisi*.



- 3 I reserve the right to supplement this affidavit by the submission of oral evidence, should this Honourable Court consider such evidence to be necessary. I further specifically reserve the right to supplement these papers in the event of the respondent opposing the relief sought.
- 4 Where I make submissions of a legal nature I do so on the advice of the applicant's attorneys of record, which advice I believe to be correct.
- 5 This affidavit is deposed to in support of the Notice of Motion attached hereto and in which the applicant seeks a *rule nisi* calling upon the respondent to show cause why he should not be interdicted and restrained from carrying out the unlawful threats contained in his emails of 14 and 15 April 2026.

Parties

- 6 The applicant is Afrocentric Investment Corporation Limited (the **Company**), a public company duly registered and incorporated in terms of the company laws of South Africa. Its registered head office is situated at 37 Conrad Street, Florida North, Roodepoort, 1709. It is the holding company of the AfroCentric Group, which includes, *inter alia*, Medscheme Holdings (Pty) Ltd (**Medscheme**) and its various divisions.
- 7 The respondent is Mr Wilbur William Matthee, an adult male with ID No: 8909035151087, and a former employee of Medscheme, residing at 15 Bellevue Street, Voorbrug, Cape Town, 7001. His email address is info@ethichawks.co.za.

The purpose of this application

- 8 The purpose of this application, which is brought on an urgent basis, is to obtain a *rule nisi* calling upon the respondent, Mr Wilbur William Matthee, to show cause why he should not be interdicted and restrained from carrying out certain threats contained in emails sent by him on 14 and 15 April 2026.
- 9 In those emails, the respondent issued an ultimatum to the applicant, threatening to disclose clearly confidential information, inclusive of a “forensic payload” to trade unions; to release a public statement naming the applicant’s directors and regulators; and to file vexatious complaints with the JSE and other bodies – all conditional upon the payment of a settlement sum of R7,307,642.72. These threats are not genuine protected disclosures, they are made in bad faith and are extortionate in nature. If carried out, they will cause immediate and irreparable harm to the applicant, its subsidiaries and related entities, as well as to clients, particularly the Government Employees Medical Scheme (**GEMS**).
- 10 Given the extreme urgency of the matter, the applicant seeks only a rule nisi operating as an interim interdict with immediate effect, together with a timetable for the supplementation of papers and the filing of opposition, with the matter to return to court for the hearing of final relief on a date to be determined.

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- 11 The purpose of this application is not to prejudice the respondent's rights, but to afford the applicant an interim and temporary protection of its rights pending a full ventilation of the disputed issues.

Background

- 12 The respondent was employed by Medscheme as a Care Coordinator from 1 May 2024, based at The Boulevard, Searle Street, Woodstock, Cape Town.

- 13 It is necessary to explain the relationship between the applicant, Medscheme, and GEMS to this Honourable Court, as this relationship is central to the threatened harm.

- 13.1 GEMS is a medical scheme established for government employees in the Republic of South Africa. It is one of the largest medical schemes in the country, serving approximately 1.9 million beneficiaries.

- 13.2 GEMS is not a subsidiary or division of the applicant. It is a separate entity governed by its own Board of Trustees, which is entirely unrelated to the applicant's Board of Directors. Medscheme, a wholly-owned subsidiary of the applicant, is an accredited third-party administrator and managed care organisation of medical schemes registered under the *Medical Schemes Act, 1998*.

- 13.3 In that capacity, Medscheme provides some administration and managed care services the GEMS medical scheme – that is, it processes medical claims, manages clinical programmes, and provides contribution and debt

services to GEMS and its beneficiaries. GEMS is accordingly one of Medscheme's clients.

- 13.4 The respondent was employed by Medscheme in a position in which he acted as a case manager dealing with the clinical claims of GEMS members.
- 14 During his employment, the respondent was admitted to the Akeso Stepping Stones Clinic on or about 18 March 2025 for inpatient treatment for severe depression and post-traumatic stress disorder. His treating psychiatrist certified him unfit for work. The respondent's initial treatment period of three weeks was extended to six weeks.
- 15 Following his hospitalisation, the respondent's sick leave and annual leave entitlements were exhausted. In accordance with the no work no pay principle, the respondent was placed on unpaid leave for the period in which he was absent from work.
- 16 In July 2025, the respondent's salary was reduced to reflect the unpaid leave recovery. The respondent took issue with the amount of the deduction and raised a grievance with the company's human resources department.
- 17 The respondent thereafter raised various further grievances including complaints about alleged discrimination, victimisation, and other workplace issues. He demanded that immediate steps be taken to address his complaints.

A handwritten signature in black ink, consisting of stylized, overlapping loops and curves, followed by the letters 'NV'.

- 18 When the company's internal processes did not produce the outcome he desired within his self-imposed timeframes, he began an extensive campaign of vexatious complaints to multiple external bodies.
- 19 On 5 December 2025, the respondent referred a dispute to the CCMA (Case Number WECT23564-25) regarding alleged unfair labour practices.
- 20 On 12 December 2025, the respondent resigned from his employment.
- 21 On 19 December 2025, the respondent referred a second dispute to the CCMA (Case Number WECT24486-25) for allegedly automatically unfair constructive dismissal.
- 22 Conciliation was held on 9 January 2026. Certificates of non-resolution were issued in respect of both disputes.
- 23 Following his resignation, the respondent sent numerous emails to the applicant's directors and board members, making various untrue and defamatory allegations and demands. He also filed complaints with multiple regulatory bodies including the South African Human Rights Commission, the JSE, the B-BBEE Commission, the Council for Medical Schemes, the Department of Employment and Labour, and the South African Police Service.
- 24 On or about 19 March 2026, the respondent filed an urgent application in this Honourable Court (Case Number 2026-066952) seeking, *inter alia*, declarations of director delinquency under section 162 of the Companies Act, 2008 against certain of the applicant's directors. That application was



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heard on 25 March 2026 and was struck from the roll for lack of urgency, with costs awarded against the respondent on Scale C.

- 25 The respondent has since referred two separate matters to the Labour Court: Case Number 2026-077546 (a claim under section 77A of the Basic Conditions of Employment Act for alleged unlawful salary deduction) and Case Number 2026-083299 (a statement of claim filed on 9 April 2026 alleging automatically unfair constructive dismissal and related claims).
- 26 The applicant intends to defend those Labour Court proceedings in due course.
- 27 As the records in the aforementioned three matters are voluminous, I have not attached same, but seek the leave of the Court to do so when this application is moved.

The threatening emails

- 28 On 14 April 2026 at 22h38, the respondent sent an email to the applicant's Group Company Secretary, Ms Lebohang Mpumlwana, with the subject "FINAL UNCONDITIONAL ULTIMATUM: COMMENCEMENT OF STATUTORY SIEGE AND MULTI-FRONT LITIGATION". A copy is annexed hereto marked **GVW1**.
- 29 In that email the respondent, *inter alia*:
- 29.1 stated that he had "*nothing left to lose*" and was "*deploying every forensic and statutory weapon at my disposal*";

- 29.2 set a deadline of 13h24 on Thursday 16 April 2026, after which he would proceed with *"immediate execution without further notice"*;
- 29.3 threatened to hold a *"Union Priming Session"* at 11h30 on 16 April 2026 with the leadership of PSA, NEHAWU, and FEDUSA to *"prime the union structures for a major forensic disclosure"*;
- 29.4 threatened a *"Public Execution of Disclosure"* at 13h30 whereby he would hand over the "Mahlangu RCA" and what he calls a *"forensic payload"* to union representatives;
- 29.5 threatened to brief unions that their members are *"subsidising a suppressed R180 million daily leak via the 9.5% premium hike"*;
- 29.6 threatened to file formal complaints for *"Material Non-Disclosure and Market Deception"* with the JSE and the Companies and Intellectual Property Commission;
- 29.7 threatened to release a *"Whistleblower's Manifesto"* – a public statement *"naming every director and regulator who chose corporate concealment over their fiduciary duty"*;
- 29.8 threatened to challenge the audit integrity of the applicant's Integrated Report and to file a notice with the Independent Regulatory Board for Auditors; and
- 29.9 demanded, as a condition for not carrying out these threats: statutory rectification, *"Solatium & Professional Rehabilitation"*, and a *"10-Year Psychological Indemnity"*.



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- 30 On 15 April 2026, the applicant's attorneys of record, Deneys, sent a cease-and-desist letter to the respondent calling on him to withdraw his threats by 17h00 that day. A copy is annexed hereto marked **GVW2**.
- 31 On 15 April 2026 at 13h19, the respondent replied to the cease-and-desist letter. He asserted that his communications were "*Protected Disclosures under the PDA and the Companies Act*" and stated that he was "*not extorting the Board*". He did not withdraw his threats. A copy of his reply is annexed hereto marked **GVW3**.
- 32 On 15 April 2026 at 15h43, the respondent sent a further email quantifying his settlement demand at R7,307,642.72, broken down as follows: Direct Restitution R1,027,107.12; Property Loss R145,000.00; "*Professional Death Compensation*" R5,135,535.60; Clinical Provision R750,000.00; and Statutory Costs R250,000.00. He confirmed that liaison sessions with PSA, NEHAWU, DENOSA, and POPCRU had been "*formally issued*".
- 33 He presented two scenarios: Scenario A (Settlement) whereby the "*Mahlangu RCA remains a private internal matter*", or Scenario B ("*The Siege*") triggering "*Full Forensic Disclosure*" to union legal teams. A copy is annexed hereto marked **GVW4**.
- 34 Later that same evening, at 20h44, the respondent sent a fourth email to the applicant's attorneys. In this email, the respondent noted that his characterisation of "*R180 million daily clinical leakage*" was "*imprecise*". He acknowledged that the R180 million figure "*refers to the average amount GEMS pays out in claims, not an amount lost to leakage*".



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- 35 However, he did not withdraw his threats or his settlement demand, stating
*"I do not withdraw my complaint. The systemic failure documented in the
Mahlangu RCA remains valid and warrants a forensic audit."* A copy is
annexed hereto marked **GVW5**.
- 36 Significantly, the respondent's concession in this fourth email undermines
the very foundation of the sensational claims he has been threatening to
publish. By his own admission, the "*R180 million*" figure that he has been
using to threaten union briefings, JSE complaints, and public statements
does not represent money lost to any "*leakage*" or fraud, but simply the
ordinary daily claims expenditure of GEMS.
- 37 The respondent's willingness to deploy misleading and inflammatory
characterisations is itself indicative of the bad faith that pervades his
conduct.

The applicant's concerns

- 38 The applicant does not know what the "*Mahlangu RCA*" is or what the
"*forensic payload*" contains. It presumes that these may contain
confidential and proprietary information belonging to the applicant or its
subsidiaries, obtained by the respondent during his employment.
- 39 The applicant has been able to establish, through the respondent's own
Labour Court Statement of Claim filed on 9 April 2026 (Case Number
2026-083299), that the so-called "*Mahlangu RCA*" likely refers to a
Gexus/DMS root cause analysis relating to a GEMS member complaint. It
pertains to a complaint from a member of the GEMS scheme who received

a non-adherence letter which the respondent contends was generated by a system integration error between the Gexus and DMS platforms operated by Medscheme.

40 “Gexus” and “DMS” are two separate software systems operated by Medscheme to service GEMS. In broad terms, Gexus is a scheme specific instance of the Nexus administration platform supporting the GEMS’s chronic care medicine, including chronic adherence, debt and contribution management functions, while the Disease Management System (DMS) is a specialist clinical platform managing structured disease programmes and care pathways for conditions such as HIV, diabetes, hypertension and hyperlipidemia, with both platforms fully integrated with internal systems and external platforms used for GEMS claims processing. The two systems are designed to work together.

41 A root cause analysis (or RCA) is a structured, systematic process for identifying the underlying, fundamental causes of problems or incidents which is a method used by Medscheme as a governance tool when servicing its clients. When an adverse event or system error occurs affecting a patient or medical scheme member, Medscheme conducts a root cause analysis to identify the underlying cause of the error, trace the sequence of events that led to it, and determine what corrective steps are required.

42 Therefore, a root cause analysis is an internal investigation report prepared in response to a member complaint or clinical incident, and it typically contains detailed clinical and personal information about the

affected member, including their medical history, treatment records, claims data, and medication adherence information.

43 In this instance, the respondent's Labour Court Statement of Claim reveals that the "*Mahlangu RCA*" arose from a complaint by a 75-year-old GEMS member who received an automated non-adherence letter from the DMS system, despite the member being compliant with her chronic medication.

44 The respondent contends that this occurred because the Gexus system recorded a change in the member's medication benefit category (from acute to chronic) from January 2025 onwards, but the DMS system did not receive or recognise this update and accordingly continued to flag the member as non-adherent. The respondent appears to have conducted an internal root cause analysis, which he alleged confirmed what he characterises as a "*structural integration gap*" between the Gexus and DMS systems.

45 It is documents pertaining to this "*Mahlangu RCA*" – together with what the respondent calls a "*forensic payload*" – that he now threatens to hand over to trade union representatives unless the applicant pays him R7,307,642.72.

46 Whatever the merits of the respondent's concerns about this alleged system issue – and the applicant reserves its position in that regard – the root cause analysis and the "*forensic payload*" which the respondent threatens to disclose will, by their nature, contain special personal information as defined in section 26 of the *Protection of Personal*

- Information Act, 2013 (POPIA)*. This includes patient diagnostics, health biometrics, medical scheme membership details, and clinical care information pertaining to identifiable GEMS beneficiaries. The disclosure of such information to trade unions and the public would constitute a flagrant breach of POPIA.
- 47 The respondent was, during his employment, at all times subject to a duty of confidentiality in respect of the applicant's proprietary and confidential information. The fact that his employment has terminated does not extinguish that duty. The threatened disclosure of the "*Mahlangu RCA*" and the "*forensic payload*" to trade unions and the public constitutes a threatened breach of this duty.
- 48 The threatened "*Whistleblower's Manifesto*" naming directors and regulators is clearly intended to embarrass and cause reputational damage to the applicant and its directors. Such a publication would likely be defamatory.
- 49 The respondent's threats are conditional upon payment – he has expressly stated that if the applicant pays his settlement demand, the "*Mahlangu RCA remains a private internal matter*" (Scenario A). This renders his conduct extortionate in nature. I am advised that the making of threats, conditional upon payment to refrain from carrying them out, constitutes the common law crime of extortion.
- 50 The respondent's conduct is manifestly *mala fide*. His allegations regarding the Gexus/DMS system issue, and the various other workplace

complaints he has raised, are already the subject of two pending Labour Court referrals, in which he has pleaded substantially the same facts and seeks compensation.

51 He is now attempting to use the same allegations as a weapon of extortion, threatening to publish them unless he is paid. He is not seeking to ventilate legitimate grievances through the appropriate legal forum – he is seeking to circumvent the judicial process and extract payment by threat.

52 The respondent is no longer an employee of Medscheme or any entity within the AfroCentric Group. He resigned on 12 December 2025. Inasmuch as he characterises his threatened conduct as “*Protected Disclosures under the PDA*”, I am advised that neither the *Companies Act, 2008* nor the *Protected Disclosures Act, 2000* affords protection to disclosures made by a person who, at the time of the disclosure, is no longer an employee.

53 Moreover, even if the respondent were still an employee, a disclosure made for the purpose of extracting payment – as is manifestly the case here – would not constitute a protected disclosure. The respondent’s own emails demonstrate that his threatened disclosures are conditional upon the payment of R7,307,642.72. They are made for financial gain and are not made in good faith.

54 The applicant is a JSE-listed company. The threatened statements regarding “*Material Non-Disclosure and Market Deception*” could cause

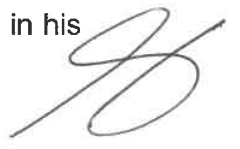
serious harm to the applicant's share price, investor confidence, and commercial reputation.

55 Medscheme is currently in the process of renegotiating contracts and renewals with some of its largest clients. This is a particularly precarious time for adverse publicity. Any disclosure of the nature threatened by the respondent could jeopardise these contractual relationships and cause significant commercial harm to the AfroCentric Group.

56 The respondent's true intention appears to be to disrupt the relationship between GEMS and Medscheme. By threatening to brief trade union structures representing government employees and to present the 9.5% premium increase as a consequence of alleged undisclosed system failures, the respondent seeks to create maximum reputational damage and commercial disruption to the applicant and its subsidiaries. He is weaponising these allegations – regardless of their truth, which the applicant denies – for the sole purpose of coercing payment.

57 GEMS itself is also affected by the respondent's threats. The GEMS Board of Trustees and the AfroCentric Board are unrelated entities; the respondent was never employed by GEMS. His inclusion of the GEMS Board in his ultimatum appears designed purely to cause maximum disruption.

58 While the applicant denies the truth of the respondent's allegations regarding the so-called "*R180 million daily drain*" and the alleged suppression of clinical risks, the respondent himself has conceded, in his


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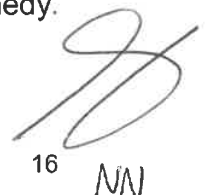
fourth email of 15 April 2026, that his characterisation of “*R180 million daily clinical leakage*” was “*imprecise*” and that the figure refers to the average amount GEMS pays out in claims daily, not an amount lost to any leakage or fraud. Despite this admission, the respondent has not withdrawn his threats.

- 59 The repercussions of any public statement of this nature – particularly one founded on a characterisation that the respondent himself accepts as misleading – would be catastrophic for a JSE-listed entity. Investor confidence in the AfroCentric Group could be severely undermined, the applicant’s share price would likely be adversely affected, and the commercial relationships with GEMS and other clients could be irreparably damaged. These are precisely the kinds of harms that cannot be undone by a subsequent award of damages.

The Requirements for urgent interim interdicts

- 60 I am advised that an applicant for urgent interim relief must demonstrate to this Honourable Court that:

- 60.1 It has a *prima facie* right to the relief sought;
- 60.2 The matter is urgent;
- 60.3 There would be irreparable harm were the relief not to be granted;
- 60.4 There is no alternative remedy; and
- 60.5 The balance of convenience and interests of justice require such a remedy.

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61 I address each of these in turn below.

A prima facie right

62 The applicant has a clear right to protect its reputation, the dignity of its directors and officers, and its confidential and proprietary information.

63 The respondent's emails constitute threats to publish defamatory material, disclose confidential information, and make vexatious complaints – all conditional upon a substantial payment. This conduct is, on the face of it, unlawful.

64 The common law protects against extortion, defamation, and breach of confidentiality. The applicant's rights in this regard are well established.

65 I submit that given the extreme urgency, the applicant seeks only a *rule nisi* and not final relief at this stage.

Urgency

66 The respondent has set a self-imposed and irrational deadline of 13h24 on 16 April 2026 – giving the applicant less than 48 hours from when the first threatening email was received on the evening of 14 April 2026.

67 Union liaison sessions have been scheduled by the respondent for 11h30 on 16 April 2026.

68 The "*Public Execution of Disclosure*" is threatened for approximately 13h30 on 16 April 2026.



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69 The urgency is not self-created by the applicant. It arises entirely from the respondent's unilateral imposition of an extremely short deadline.

70 The applicant's attorneys sent a cease and desist letter within hours of receiving the threatening email. When the respondent failed to withdraw his threats, the applicant was left with no option but to approach this Honourable Court on an urgent basis.

71 The applicant was unable to give the respondent greater notice of these proceedings than it has.

72 I submit that the matter is clearly extremely urgent and this will be substantiated by what I set out further below.

Irreparable Harm

73 If the respondent carries out his threats, the applicant will suffer irreparable harm that cannot be remedied by an award of damages:

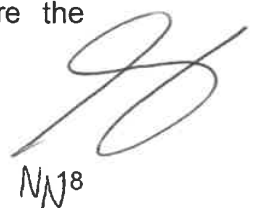
73.1 confidential information, once released, cannot be recalled or contained;

73.2 reputational damage to a JSE-listed company, once inflicted, is large extremely difficult to quantify or reverse;

73.3 defamatory statements, once published, cannot be "*unspoken*"; and

73.4 damage to relationships with unions, regulators, investors and the public would be immediate and potentially permanent.

74 Accordingly, the applicant would suffer irreparable harm were the respondent to proceed with his actions as threatened.



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No alternative remedy

- 75 The applicant has no alternative remedy. It has already attempted to resolve the matter by sending a cease-and-desist letter. The respondent has refused to withdraw his threats.
- 76 The Labour Court proceedings are the appropriate forum for the respondent's employment-related claims. The threats he has made go far beyond any legitimate pursuit of those claims.
- 77 Moreover, and legitimate regulatory concerns may be processed through those bodies who exercise independent and impartial oversight over the affairs of the applicant, its directors and GEMS.

Balance of convenience and interests of justice

- 78 The balance of convenience overwhelmingly favours the applicant. An interim interdict will not prejudice the respondent's ability to pursue his legitimate legal claims in the Labour Court.
- 79 In contrast, absent an interdict, the applicant faces the real prospect of irreparable reputational and financial harm.
- 80 The applicant only seeks a *rule nisi*. The respondent will have the opportunity to file papers and be heard on the return date.

Costs

81 The applicant seeks costs on the scale as between attorney and client, given the extortionate nature of the respondent's conduct as well as the timeframes under which the applicant has been forced to act.

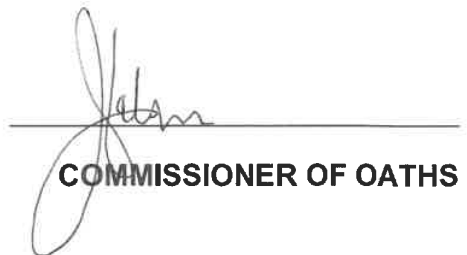
Conclusion

82 70 Under all the circumstances, I submit that a proper case has been made out for the relief sought in the Notice of Motion and I pray that this Honourable Court make an order in terms thereof.



GERALD NEVILLE VAN WYK

I CERTIFY that this affidavit was SIGNED and SWORN TO before me at SANDTON on this the 16th day of April 2026, the deponent having acknowledged that he knows and understands the contents of this Affidavit, he has no objection to taking the prescribed oath and considers it binding on his conscience.



COMMISSIONER OF OATHS

**CERTIFIED A TRUE COPY OF THE ORIGINAL
NESCHIKA SHIVANI NAIDOO
EX OFFICIO
COMMISSIONER OF OATHS
PRACTISING ATTORNEY
REPUBLIC OF SOUTH AFRICA
11 ALICE LANE
SANDTON**

Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>

Sent: Tuesday, April 14, 2026 10:38:00 PM

To: Lebohang Mpumlwana <Lebohang.Mpumlwana@Afrocentrichealth.com>

Subject: FINAL UNCONDITIONAL ULTIMATUM: COMMENCEMENT OF STATUTORY SIEGE AND MULTI-FRONT LITIGATION

This message originated from outside your organization

WITHOUT PREJUDICE / FOR SETTLEMENT PURPOSES ONLY

TO: The Company Secretary (**For the Attention of the GEMS Board of Trustees and the AfroCentric Board**)

DATE: 14 April 2026

DEADLINE: Thursday, 16 April 2026, at 13:24 (NO EXTENSIONS)

URGENT AND FORMAL NOTICE

Dear Members of the Boards,

I am placing the GEMS Board of Trustees and the AfroCentric Board on final, unconditional notice. This communication serves as a formal declaration of a Statutory and Ethical Deadlock. Be advised: I am backed into a corner, my life is actively in danger, and I have suffered the total loss of my home and professional standing. I have nothing left to lose, and as a result, I am now deploying every forensic and statutory weapon at my disposal. There will be no extensions, no off-the-record meetings, and no verbal negotiations. All further communication must be in writing to form part of the High Court record.

The SANC, SAPC, CMS, and HPCSA are now formally on notice. Their position on my ethical question or silence thereof will be treated as Administrative Abandonment at 13:25 16 April 2026.

Furthermore, the Department of Employment and Labour (DEL) is on notice regarding:

SARS & UIF Fraud: The non-remittance of levies and UI-19 misrepresentation.

Service Fraud: The issuance of a fraudulent Certificate of Service to silence a whistleblower.

Failure by these bodies to act by the deadline will result in an immediate High Court Mandamus naming the Registrars in their personal capacities.

A formal notice is being prepared for the Independent Regulatory Board for Auditors (IRBA). We will challenge the audit integrity of the 8 April Integrated Report. If your auditors signed off on financials while the Board suppressed Priority 1 clinical risks and the documented R180 million daily drain, they are now complicit in a material market deception.

I formally record that my separation was an Automatically Unfair Constructive Dismissal (Section 187(1)(h) LRA). This is the direct result of my Protected Disclosures. Any narrative to the contrary is a continuation of the statutory fraud currently being investigated.

NN 

To ensure there is no ambiguity regarding my intent, take note of the following schedule for Thursday, 16 April 2026:

11:30 AM – Union Priming Session (as with SAPC 14 April 2026): I will hold a formal inquiry session with the leadership of PSA, NEHAWU, and FEDUSA. The purpose of this meeting is to prime the union structures for a major forensic disclosure.

I will establish whether the Board has misrepresented the scheme's clinical and financial stability during recent premium negotiations. I will provide the Board with documented proof of this scheduled briefing the morning 16 April 2026 to confirm the process is locked and synchronized.

13:24 PM – Expiry of Final Settlement Window: This is the hard cutoff for a written, signed resolution to my constructive dismissal and the statutory fraud.

13:30 PM – Public Execution of Disclosure: If no remedy is received by 13:24, I will move to a public handover of the Mahlangu RCA and the forensic payload. The unions will be fully briefed and ready to act on the evidence that their members are subsidising a suppressed R180 million daily leak via the 9.5% premium hike.

To halt the 13:25 escalation, I require a signed, written settlement proposal before the deadline:

Statutory Rectification: Immediate submission of a corrected UI-19 and full SARS/UIF remittance.

Solatium & Professional Rehabilitation: Compensation for the total destruction of my career, dignity, and the "professional death" I have been forced to endure.

10-Year Psychological Indemnity: Full provision for specialized psychiatric and clinical care for no less than 10 years to address the profound PTSD and damage caused by your targeted occupational detriment.

- Immediate Execution (13:25 Thursday)

At the expiry of this deadline, I will move to immediate execution without further notice. My scheduled briefing with the leadership of PSA, NEHAWU, and FEDUSA will result in the following:

Forensic Payload Transfer: I will hand over the Mahlangu Root Cause Analysis (RCA) as empirical proof of an automated "Integration Gap" that creates a systemic clinical and fiscal leak.

The 9.5% Link: I will provide the forensic link proving that the 9.5% premium increase—currently a point of extreme contention for organized labor—is a direct consequence of the R180 million daily drain that the Board has failed to mitigate or disclose.

Member Action: I will advise Union Leadership on the grounds for a High Court Interdict to freeze premium payments and demand an immediate independent forensic audit of the Gexus-DMS integration architecture and back payment of all benefits identified during the integration gap.

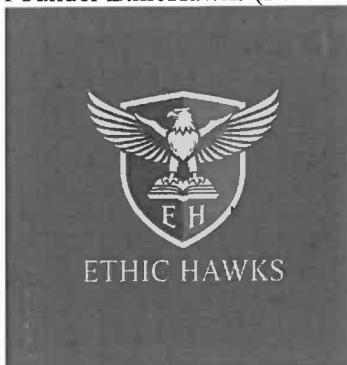
JSE & CIPC Filing: I will simultaneously file formal complaints for Material Non-Disclosure and Market Deception, citing the omission of these Priority 1 risks from the 8 April Integrated Report.

The Whistleblower's Manifesto: A public statement will be released naming every director and regulator who chose corporate concealment over their fiduciary duty to the public and the clinical safety of members.

I am finished with silence. You have until 13:24 16 April 2026.

Yours Professionally,

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



www.ethichawks.co.za



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This email has been scanned for email related threats and delivered safely by Mimecast.
For more information please visit <http://www.mimecast.com>

NN 

By Email: info@ethichawks.co.za

Mr W W Matthee

URGENT ATTENTION

15 April 2026

9th Floor
117 on Strand
117 Strand Street
Cape Town 8001
Tel +27 21 405 1200 Fax +27 21 418 6900

Private Bag X10 Roggebaai 8012
Docex 181 Cape Town
deney's.co.za

Direct line
+27 21 405 1208

Email
jason.whyte@deney's.co.za

Your reference:

Our reference: AFR1282

Dear Sir

AfroCentric Investment Corporation Ltd and others // Yourself

- 1 We confirm that we act on behalf of AfroCentric Investment Corporation Limited, as well as its subsidiaries and related entities. We also act on behalf of the directors and officers of those entities.
- 2 Our clients have provided us with a copy of your email sent to their Group Company Secretary at 22h38 on 14 April 2026. In that email, you advise our clients that unless they conclude a settlement agreement with you, requiring the payment of unquantified amounts among other stated relief, you will proceed to take further steps at 13h24 on 16 April 2026.
- 3 Our clients do not accede to this demand and have instructed us to call on you to withdraw your threatened course of action as it is unlawful. In particular, your demand, on the face of it, constitutes a criminal offence, namely that of extortion and blackmail.
- 4 Our client notes in particular that you intend to:
 - 4.1 Publicly release a so-called 'Whistleblower's Manifesto' naming and accusing our clients' directors and office bearers of 'corporate concealment' and breach of their fiduciary duties. Moreover, that you intend to publicly state that our clients' directors and office bearers are acting in collusion with unnamed 'regulators'; and
 - 4.2 Release a so-called 'Forensic Payload Transfer' regarding the Mahlangu Root Cause Analysis. This would clearly involve the public release of confidential and proprietary information held by or belonging to our clients.
- 5 We note that you have made several other threats that, whilst arguably not unlawful *per se*, are rendered unlawful as they are simply intended to act as a means of forcing our clients to provide you with unquantified, but substantial financial compensation.
- 6 In summary, the demands made in your email are unlawful and, if acted upon, would cause our client irreparable harm.
- 7 We accordingly call on you to confirm in writing by no later than 17h00 today, 15 April 2026, that you unconditionally withdraw your email and the threats contained therein. Should we not receive such written confirmation, our clients shall be forced to consider an urgent approach to the High Court, if necessary on an *ex parte* basis, to interdict and restrain you from proceeding with your unlawful conduct.

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- 8 We remind you that the High Court has already expressed its displeasure with your conduct, in striking from the roll with costs, a spurious urgent application that you had brought in which you sought relief that the Court was incapable of granting. In that application you made unlawful, vexatious and defamatory accusations against our clients. Please expect to receive our clients taxed bill of costs for your payment shortly, evidencing the costs that were awarded against you by the Court in the aforementioned urgent application that you recently instituted.
- 9 You have further referred two separate disputes to the Labour Court in which you make similar untrue, vexatious and defamatory allegations against our clients. Our clients will defend these referrals and seek that they be dismissed with orders of punitive costs.
- 10 Accordingly, our clients are of the view that your conduct is, in general, vexatious and our clients reserve their rights to seek appropriate relief against you in due course.
- 11 We look forward to receiving your written response and confirm that in the interim our clients' rights remain reserved in full.

Yours faithfully


pp

Jason Whyte
Director
Deneys


NN

Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: 15 April 2026 13:19
To: Frances Barker
Cc: Olebogeng Motlhaping; Jason Whyte
Subject: RE: FINAL UNCONDITIONAL ULTIMATUM: COMMENCEMENT OF STATUTORY SIEGE AND MULTI-FRONT LITIGATION [N-CPT_MATTERS.FID2264505]
Attachments: Annexure_A_5%_Member_Contribution.PDF

Dear Ms Baker,

In response to your letter dated 15 April 2026, be advised that my communications are Protected Disclosures under the PDA and the Companies Act. I am not 'extorting' the Board; I am formally notifying them of a systemic fiscal leak and a material non-disclosure in the April 8th Integrated Report.

The attached Annexure clarifies that the primary objective of this statutory process is the protection of member funds and the rectification of a 9.5% premium hike that is based on documented clinical and IT failures.

Regarding your characterisation of 'unquantified amounts' be advised that my personal restitution is a matter of **'just and equitable' compensation** as prescribed by the PDA for occupational detriment.

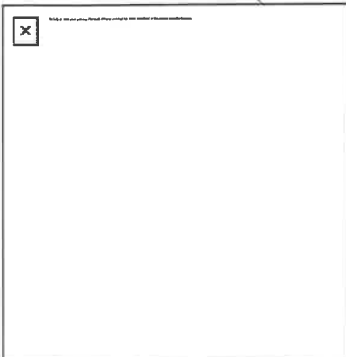
However, the primary 'quantified' demand of this statutory process is the the immediate **redemption of the 180 million daily leakage** and the **downgrade of the 9.5% contribution hike to 5%**. This represent a quantifiable saving to the membership of approximately **3.2 billion annually**-a figure that far outweighs any personal settlement and confirms the public interest of this disclosure.

Any attempt to interdict this disclosure will be met with an urgent application for a Writ of Mandamus and a report to the JSE regarding market deception.

Kindly deliver Annexure A to the Board.

Yours Professionally

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: 15 April 2026 15:43
To: Frances Barker
Cc: Olebogeng Motlhaping; Jason Whyte
Subject: FINAL STATUTORY CLARIFICATION: Private Resolution Path vs. Commencement of Statutory Siege

Dear Ms. Barker,

Further to my communication of 13:18 today, I hereby provide the final "Private Resolution Path" to resolve the statutory deadlock before the 13:24 deadline on 16 April 2026.

To facilitate a settlement that protects the membership and the scheme's solvency, the Board must ratify the following quantified schedule by the aforementioned deadline:

As per Annexure A (previously served), the Board must issue a formal resolution to downgrade the 2026 contribution hike from 9.5% to a maximum of 5%. This correction remediates the "Governance Tax" currently backfilling internal IT wastage and the R180 million daily clinical leakage.

Based on a Cost-to-Company (CTC) of R42,796.13 per month, my restitution for documented occupational detriment is quantified as follows:

Direct Restitution: R1,027,107.12 (24 months back-pay/substitution).

Property Loss: R145,000.00 (Total loss of fixed property resulting from detriment).

Professional Death Compensation: R5,135,535.60 (10-year compensatory future loss of earnings).

Clinical Provision: R750,000 (10-year specialist psychosocial/clinical care fund).

Statutory Costs: R250,000 (Forensic audit and Ethic Hawks operational expenses).

Total Settlement Value: R7,307,642.72

The Board is required to apply for a formal SARS Tax Directive for the total settlement under the category of "Compensation for Occupational Detriment." The Board shall provide a full tax indemnity to ensure the net amount is protected and structured as a capital settlement for damages.

Be advised that the invitations for the Liaison sessions have been formally issued to the leadership of the PSA, NEHAWU, DENOSA, and POPCRU. The Board has until 13:24 tomorrow to decide the outcome:

11:30 AM Liaison: Activation of Mandamus against SANC, DEL, and CMS.

<https://teams.live.com/join/9317804058155?p=3OxPhtrj39zfqYDWqY>

13:30 PM Outcome (The Disclosure or The Deal):



<https://teams.live.com/meet/9392336908714?p=ihT4rLnWK7HyYFlnds>

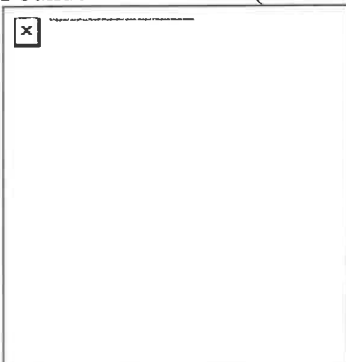
Scenario A (Settlement): 13:30 serves as a Victory Briefing for the 5% Member Deal. The Mahlangu RCA remains a private internal matter.

Scenario B (The Siege): 13:30 triggers the Full Forensic Disclosure of the R180 million daily leakage to Union legal teams for an immediate High Court Interdict.

The window for a private resolution closes at 13:24 tomorrow. I remain finished with silence.

Yours Professionally,

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



www.ethichawks.co.za



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Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: 15 April 2026 20:44
To: Frances Barker
Cc: Olebogeng Motlhaping; Jason Whyte
Subject: CLARIFICATION AND CORRECTION: Re: FINAL STATUTORY CLARIFICATION – Terminology Correction (No Withdrawal of Complaint)

Dear Recipients,

I am writing to clarify and correct a terminological imprecision in my previous correspondence dated 15 April 2026.

In my letters, I referred to 'R180 million daily clinical leakage.' Upon further refinement, I acknowledge that the word 'leakage' was imprecise.

The correct factual position is as follows:

The systemic integration gap between Gexus and DMS (proven in the attached Mahlangu RCA) causes misclassification of claims—specifically, chronic medication claims being paid from acute/day-to-day benefits.

This misclassification does not constitute 'leakage' in the strict forensic sense (i.e., money leaving the scheme incorrectly). Rather, it constitutes:

- Erosion of member day-to-day benefits
- Corruption of claims data
- Operational waste
- Plausible inflation of total claims spend

The R180 million figure refers to the average amount GEMS pays out in claims, not an amount lost to leakage.

The systemic gap contributes to the inflation of that R180 million spend, which in turn contributes to the 9.5% contribution increase.

I withdraw the word 'leakage' and regret any confusion caused. I do not withdraw my complaint. The systemic failure documented in the Mahlangu RCA remains valid and warrants a forensic audit.

Yours professionally,

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)


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